

stated, in relevant part:

We conclude that the arbitration fee-shifting provision in the Terms of Service is not unconscionable. As in *Sanchez*, the plaintiffs here do not claim, and no evidence in the record suggests, that the arbitration fees are unaffordable for them or would thwart their ability to arbitrate this dispute. Under the case-specific standard announced in *Sanchez*, the fee-shifting clause in the Terms of Service is not unconscionable. *Sanchez*, 61 Cal. 4th at 911. We therefore conclude that the plaintiffs here did not carry their burden of demonstrating the substantive unconscionability of the bilateral prevailing party clause.

(*Tompkins v. 23andMe, Inc.* (9th Cir. 2016) 840 F.3d 1016, 1027, discussing *Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 918 [adopting an ability-to-pay test under Code of Civil Procedure § 1284.3, which is applicable on its face to indigent consumers but extended by courts to all consumers].)

Plaintiff also argues that the provision allowing discovery based on the arbitrator's discretion is substantively unconscionable. Plaintiff cites no authority, but defendant cites *Coast Plaza Doctors Hospital v. Blue Cross of California* (2000) 83 Cal.App.4th 677, which appears to directly contradict the argument. (*Id.* at 689-690 [fact that an arbitration clause may limit discovery rights is not substantively unconscionable because such a finding would cause every arbitration clause to fail].)

Finally, the Court rejects plaintiff's argument that the arbitration agreement should not be enforced on public policy grounds.

Having considered the totality of the evidence before the Court, the Court does not conclude that the subject arbitration provision to be unconscionable or otherwise enforceable.

**12. 9:00 AM CASE NUMBER: C25-01068**  
**CASE NAME: CHRISTOPHER LONDAHL VS. DOES 1-10**  
**HEARING IN RE: APPLICATION FOR RIGHT TO ATTACH ORDER FILED BY CHRISTOPHER LONDAHL.**  
**FILED BY:**  
**\*TENTATIVE RULING:\***

Plaintiff Christopher Londahl, as Special Administrator of the Estate of David W. White's Application for Right to Attach Order and for Writ of Attachment is denied.

### **Background**

Plaintiff Christopher Londahl brings this action in his capacity as Special Administrator of the Estate of David W. White. Defendant Mary Ann LaFleur-White is the surviving spouse of David White. David White and Defendant married on August 4, 2018, after executing a premarital agreement addressing their respective property rights. Prior to the marriage, David White had established estate planning instruments, including the David and Carol White Revocable Trust, which later divided into a Family Trust and a Survivor's Trust following the death of his first wife. According to the complaint, a Third Restatement of the Survivor's Trust provided specified distributions to Defendant and allocated the remainder of the estate to David White's children and grandchildren.

The complaint alleges that David White's health declined significantly in 2022 and 2023 while he was suffering from pancreatic cancer, and that during this period he was elderly and infirm. David White died in September 2023. At the time of his death, he maintained a retirement account with Ameritas, described in the pleadings as a 401(k) plan with a value of approximately \$4.9 million, as well as an Ameritas annuity.

The complaint alleges that in December 2022, an Ameritas beneficiary change form was downloaded and completed that would have altered beneficiary designations in favor of Defendant, but that the form was not filed with Ameritas. The complaint further alleges that on June 5, 2023, a beneficiary change was filed with Ameritas that removed David White's previously designated beneficiaries and designated Defendant as the sole beneficiary of the Ameritas 401(k) account. Plaintiff alleges that this June 2023 beneficiary change was made without David White's knowledge or consent and while he was gravely ill.

According to the complaint and the declaration of Camille Thompson attached to the complaint, Thompson served as David White's executive assistant for 17 years and was entrusted with managing his Ameritas account access credentials. Thompson states that she historically carried out beneficiary changes at David White's direction and that David White instructed her in 2023 to maintain his son and grandchildren as the beneficiaries of the 401(k) account. Thompson states that she did not make the June 2023 beneficiary change and that David White did not instruct her to do so.

The complaint also alleges that in July 2023, shortly before David White's death, an amendment to the Survivor's Trust was made that increased Defendant's beneficial interest beyond what had been provided under the Third Restatement and the premarital agreement. Plaintiff alleges that this amendment took place while David White was physically weak and that Defendant exerted undue influence in connection with the amendment.

The complaint alleges that following David White's death, Defendant engaged in various actions involving estate and trust assets, including use of credit cards, payment of personal expenses with trust funds, refusal to pay a portion of joint tax liabilities, and receipt of a real estate commission from the Trust.

After David White's death, an appeal was submitted to Ameritas disputing the beneficiary designation on the 401(k) account. According to the opposition papers, Ameritas determined that Defendant was the proper beneficiary of the account and approved distribution of the 401(k) proceeds to her.

Plaintiff's April 16, 2025 complaint asserts causes of action for financial elder abuse, fraud, deceit, breach of fiduciary duty, conversion, declaratory relief, and constructive trust. Plaintiff seeks, among other relief, recovery of the Ameritas 401(k) proceeds, return of alleged wrongfully obtained trust assets, declaratory relief invalidating the June 5, 2023 beneficiary designation, and equitable remedies.

Plaintiff now moves for a Right to Attach Order and for Issuance of Writ of Attachment. Plaintiff had previously sought *ex parte* relief, which the Court denied. In the instant Application, Plaintiff seeks a prejudgment attachment against Defendant Mary Ann LaFleur-White, a natural person, in the amount of \$5,042,383.00. The application requests issuance of a writ of attachment directed to Defendant's

property, including all personal bank and financial accounts of Mary Ann LaFleur-White, her interests as trustee of the Mary Ann White 2024 Living Trust dated March 13, 2024, and real property in Rancho Mirage, California.

### **Legal Standard**

“Upon the filing of the complaint or at any time thereafter, the plaintiff may apply pursuant to this article for a right to attach order and a writ of attachment by filing an application for the order and writ with the court in which the action is brought.” (Code Civ. Proc. § 484.010.)

Attachment “is a remedy by which a plaintiff with a contractual claim to money (not a claim to a specific item of property) may have various items of a defendant's property seized before judgment and held by a levying officer for execution after judgment.” (*Waffer Int'l Corp. v. Khorsandi* (1999) 69 Cal. App. 4th 1261, 1271.) Attachment is therefore nothing more than “a provisional remedy to aid in the collection of a money demand.” (*Kemp Bros. Constr. Inc. v. Titan Elec. Corp.* (2007) 146 Cal. App. 4th 1474, 1476.) It is a “harsh remedy,” requests for which will be “strictly construed.” (*Blastrac, N.A. v. Concrete Solutions & Supply* (C.D. Cal. 2010) 678 F. Supp. 2d 1001, 1004-05.)

Before a writ of attachment may issue, plaintiff must demonstrate the following:

- (1) The claim upon which the attachment is based is one upon which an attachment may be issued.
- (2) The plaintiff has established the probable validity of the claim upon which the attachment is based.
- (3) The attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based.
- (4) The amount to be secured by the attachment is greater than zero.

(Code Civ. Proc. § 484.090.)

“A claim has ‘probable validity’ where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim. (Code Civ. Proc. § 481.190.)

### **Analysis**

#### **Availability of Attachment for Elder Abuse Claims**

Plaintiff’s memorandum asserts that “[a]ttachment secures claims for fixed or readily ascertainable money demands ...whether arising from contract, fraud, conversion, or mistake,” citing *Klein v. Benaron* (1967) 247 Cal.App.2d 607. Plaintiff did not cite a specific page of the decision for this proposition. Upon review of *Klein*, the Court does not find support for Plaintiff’s assertion. The case does not state that claims for “fraud, conversion, or mistake” support prejudgment attachment. Nevertheless, Plaintiff may seek a writ of attachment based on her cause of action for elder abuse

under Welfare and Institutions Code section 15657.01, which provides:

Notwithstanding Section 483.010 of the Code of Civil Procedure, an attachment may be issued in any action for damages pursuant to Section 15657.5 for financial abuse of an elder or dependent adult, as defined in Section 15610.30. The other provisions of the Code of Civil Procedure not inconsistent with this article shall govern the issuance of an attachment pursuant to this section. In an application for a writ of attachment, the claimant shall refer to this section. An attachment may be issued pursuant to this section whether or not other forms of relief are demanded.

(Welf. & Inst. Code § 15657.01.)

In light of the opening clause (“Notwithstanding Section 483.010”) and reference to other provisions of the Code of Civil Procedure “not inconsistent” with the statute, the court also interprets section 15657.01 to relieve Plaintiff of the burden to prove that her elder abuse claim is founded on a contract. Accordingly, Plaintiff may seek attachment on an elder abuse claim.

### **Disputed Elements**

The parties do not dispute the procedural availability of attachment, but dispute whether Plaintiff has shown the probable validity of the claim and whether the attachment is sought for a proper purpose. For the reasons that follow, the Court finds that Plaintiff has not met the burden of establishing probable validity and therefore does not reach the issue of improper purpose.

### **Probable Validity of the Elder Abuse Claim**

A claim for financial elder abuse contains the following elements: that the defendant took, secreted, obtained, or retained Plaintiff's property or assisted in the taking, secreting, obtaining, or retaining of the property; that Plaintiff was 65 or older, - that defendant took, secreted, obtained, or retained the property (or assisted in those acts) with the intent to defraud, or for a wrongful use, or by undue influence; that Plaintiff was harmed; and that defendant's conduct was a substantial factor in causing that harm. (See Welf. & Inst. Code § 15610.30; CACI 3100.)

### **Evidence Offered by Plaintiff**

#### **Declaration of Christopher Londahl**

Christopher Londahl declares that he is the duly appointed Special Administrator of the Estate of David W. White and the plaintiff in this action against Defendant Mary Ann LaFleur White. He states that, in his fiduciary capacity, he has a duty to collect, manage, and protect estate assets and to pursue recovery of assets he contends were wrongfully taken or transferred. He states that the purpose of the prejudgment attachment is to prevent concealment or dissipation of assets pending judgment.

Londahl states that the complaint asserts causes of action for financial elder abuse, fraud, deceit, and conversion. He alleges that Defendant manipulated David White through fraud, coercion, and deceit

to obtain the majority of his estate, contrary to his prior estate planning intentions. Londahl states that David White was 85 years old, gravely ill, largely bedridden, and suffering from diminished mental and physical capacity during the relevant period, rendering him a vulnerable elder.

Londahl alleges that Defendant changed the beneficiary designations on David White's Ameritas 401(k) plan to name herself as sole beneficiary of approximately \$4.9 million in proceeds and similarly changed an Ameritas annuity contract. He states that these benefits were ultimately paid to Defendant despite objections and appeals by the estate and other designated beneficiaries.

Londahl relies on statements he attributes to Camille Thompson, David White's executive assistant, whose declaration is attached to the complaint. Thompson states that she controlled access to David White's Ameritas account and that David instructed her to maintain his son and grandchildren as beneficiaries. Londahl further asserts, based on his own characterization, that an unfiled December 2022 beneficiary change form naming Defendant contained a distinctive spelling of Defendant's name and an irregular signature. Londahl also asserts that Thompson stated David White did not receive an email confirmation regarding a June 2023 beneficiary change.

Londahl states that Defendant wrongfully converted additional estate assets, including charging personal expenses to the estate, failing to pay her share of joint tax liabilities totaling approximately \$128,133, and obtaining a \$14,250 real estate commission from the trust.

Based on these allegations, Londahl asserts that immediate attachment is necessary to prevent further dissipation of estate assets and to avoid irreparable harm.

#### **Declaration of Camille Thompson**

Camille Thompson states that she was David White's executive assistant for several years and remained in that role through his death on September 25, 2023. She states that, as part of her job duties, David White entrusted her exclusively with his Ameritas 401(k) security access codes. She states that David White provided her with those access codes several years earlier, later became unaware of them, and told her he would rely solely on her for any online access to his Ameritas 401(k) account. She further states that no one else at David White and Associates had knowledge of the access codes and that, due to his cancer in 2023, David White was unable to access the account without her assistance.

Thompson states that the last beneficiary change she and David White successfully completed occurred in January 2023, after Ameritas requested a completed and notarized spousal consent form. She states that, following submission of that form, the beneficiary designation was changed to name David White's son and four grandchildren, and that Ameritas confirmed the change by email. Thompson states that this January 2023 confirmation was the only beneficiary confirmation email received from Ameritas.

Thompson states that the decedent asked her to attempt additional beneficiary changes in April and June 2023, but her declaration does not describe the nature of those proposed changes. She states that the attempted changes were rejected by the Ameritas system, after which the decedent instructed her to maintain his son and grandchildren as beneficiaries and not to appeal or follow up

with Ameritas. Thompson further states that she reviewed David White's June 2023 Ameritas quarterly statement and confirmed that it continued to list the son and grandchildren as beneficiaries, consistent with that instruction.

Thompson states that on July 27, 2023, at the request of Christopher White, she logged into David White's Ameritas account using the security access codes entrusted to her and printed account documentation, which again confirmed that the beneficiaries were listed as David White's son and grandchildren. She states that following David White's death, the September quarterly Ameritas statement listed Mary Ann White as well as the son and grandchildren as beneficiaries and reflected a 200% payout, which she characterizes as incorrect.

Thompson states that at no point after the June 2023 rejected beneficiary change did David White request any further action regarding beneficiaries, and that he specifically instructed her not to appeal or follow up with Ameritas and to leave the beneficiaries unchanged. She states that she continued to confirm the beneficiary status through quarterly statements and the Ameritas system and that David White never requested that she attempt another beneficiary change. She further states that she reviewed David White's emails daily and that, aside from the January 2023 confirmation email, David White did not receive any emails from Ameritas confirming a beneficiary change.

#### **Evidence Offered by Defendant**

##### **Declaration of Mary Ann White**

Defendant Mary Ann LaFleur-White states that she is 85 years old and that she began dating David White in or around September 2016, when both were in their late seventies. She states that they married on August 4, 2018, after entering into a prenuptial agreement on or about July 30, 2018. Under the prenuptial agreement, Defendant states she was to receive \$250,000 upon David White's death if they remained married at the time of his passing.

Defendant states that during their marriage, David White told her that he wished to amend his trust to provide for her in the event that he predeceased her. She states that, consistent with those discussions, David amended and restated his Survivor's Trust on or about August 8, 2023, to provide for her following his death. Defendant states that under the Restated Survivor's Trust, the trustee is required to distribute \$250,000 to her upon David White's death and an additional \$750,000 from the net proceeds of the sale of the property located at 61 White Pine Lane in Danville. She states that these trust provisions were consistent with the prenuptial agreement. Defendant further states that David White died she did not expect to receive any additional distributions beyond those specified in the prenuptial agreement and trust.

With respect to the Ameritas 401(k) account, Defendant states that in December 2022 David White asked her to execute a spousal consent form in connection with his intent to designate his son and grandchildren as beneficiaries of the account, and that she signed the form at his request. Defendant states that she never had access to David White's Ameritas account and never possessed usernames or passwords for his financial accounts, other than access to his First Republic Bank checking account for the limited purpose of withdrawing cash to pay caregivers at David White's direction during his illness.

Defendant states that she did not learn until after David White's death that he had later updated his 401(k) beneficiary designation to name her as the sole beneficiary. She states that she was surprised by this decision and believed it reflected David White's love for her and his desire to provide for her after his death. After learning of the designation, Defendant states that she submitted an Election of Benefits Withdrawal Form to Ameritas.

Defendant states that Ameritas delayed distribution of the 401(k) benefits due to competing benefit election forms submitted by her and by Christopher White. She states that after investigating the competing claims, Ameritas determined on or about March 18, 2024 that David White's beneficiary designation naming her as sole beneficiary was valid and approved her claim, while denying Christopher White's claim. Defendant further states that Christopher White appealed Ameritas's determination and that Ameritas denied the appeal by letter dated June 24, 2024, after further review.

Defendant points out that the June 24, 2024 letter from Ameritas denying Chris White's appeal of the 401(k) beneficiary designation attached to the complaint indicates that Ameritas concluded after an investigation that the beneficiary change naming Defendant as sole beneficiary was made using the same login information previously used by David White or his assistant, Camille Thompson and that neither David White nor Thompson took any action after a confirmation email was sent. Defendant further states that Ameritas's letters advised that any lawsuit challenging the benefit determination had to be filed within 180 days and that no such lawsuit was filed. She states that Ameritas's decision is therefore final.

Defendant states that following Ameritas's determination, Plaintiff, acting as trustee of the Restated Survivor's Trust, refused to distribute the \$250,000 and \$750,000 trust payments required under the trust and prenuptial agreement, despite the sale of the Danville property. She states that she filed a probate petition on July 5, 2024 seeking relief for breach of trust and related remedies. Defendant characterizes the present lawsuit and attachment application as retaliatory, and states that granting the application would deprive her of her primary source of income and financial support in her remaining years.

#### **Declaration of Eric G. Fernandez**

Eric G. Fernandez declares that he counsel of record for Defendant Mary Ann White. Fernandez states that the application is brought in bad faith and is intended to deprive Defendant, an elderly individual, of funds her late husband intended her to receive.

Fernandez states that the dispute between Plaintiff and Defendant arose after David White's death on September 25, 2023. He states that, under David White's Amended Restated Trust, Plaintiff, acting as trustee, was required to distribute \$1,000,000 to Defendant. Fernandez asserts that Plaintiff refused to make that distribution and breached his duties as trustee. Fernandez states that, as a result, Defendant filed a probate petition on July 5, 2024 seeking remedies for breach of trust, removal of trustees, and related relief.

Fernandez further states that Plaintiff filed the present civil action as retaliation for Defendant's

efforts to enforce her rights under the trust and to challenge Plaintiff's refusal to distribute trust assets. He states that a separate dispute arose after David White's death concerning the beneficiary designation of David White's Ameritas 401(k) account, when Chris White attempted to challenge the designation naming Defendant as sole beneficiary.

Fernandez states that Ameritas investigated the competing claims and determined on or about March 18, 2024 that Defendant was the proper beneficiary of the 401(k) account, and that Ameritas denied Chris White's appeal by letter dated June 24, 2024. Fernandez states that Ameritas advised that any challenge to its determination had to be brought in state or federal court within 180 days, and no such action was filed within that period.

Fernandez asserts that Defendant has been receiving monthly distributions from the 401(k) account and has relied on those payments for her support, and that Plaintiff's application seeks to interrupt those payments without sufficient factual basis.

Fernandez relies on the June 24, 2024 Ameritas letter, which he states reflects Ameritas's conclusion that the beneficiary change naming Defendant was authorized by David White, entered using the same login information previously used to access the account, and confirmed by email, after which no action was taken by David White or his assistant Ms. Thompson. Fernandez states that Plaintiff's continued withholding of the \$1,000,000 allegedly owed to Defendant under the trust effectively operates as its own form of attachment and that granting the application would compound the alleged deprivation of funds owed to Defendant.

### **Evaluation of the Evidence**

To obtain a writ of attachment, Plaintiff must establish the probable validity of the claim upon which the attachment is based, meaning that it is more likely than not that Plaintiff will obtain a judgment on that claim. (Code Civ. Proc. §§ 481.190, 484.090.)

Plaintiff seeks attachment based on a claim for financial elder abuse. Plaintiff's evidentiary showing rests primarily on the declaration of Camille Thompson and on inferences drawn from David White's age, illness, and the ultimate disposition of his Ameritas 401(k) benefits.

Thompson's declaration establishes that she controlled access to David White's Ameritas account and that the last beneficiary change she and David White successfully completed occurred in January 2023, naming his son and grandchildren. Thompson states that David later asked her to attempt additional beneficiary changes in April and June 2023. She states that those attempts were rejected by the Ameritas system, after which David instructed her to maintain the existing beneficiaries and not follow up with Ameritas. Thompson further states that she reviewed the June 2023 quarterly statement and accessed the account again on July 27, 2023, both of which reflected David White's son and grandchildren as beneficiaries.

Defendant states that she did not have access to David White's Ameritas account or credentials and was not aware until after his death that she had been designated as the sole beneficiary. Defendant relies on Ameritas's March 18, 2024 and June 24, 2024 determination letters, which state that Ameritas investigated the competing claims and concluded that a beneficiary change entered on June



5, 2023 naming Defendant as sole beneficiary was valid. Ameritas further concluded that the change was entered using the same login credentials previously used to access the account, that the system reflected the change as “pending” rather than rejected, and that a confirmation email was sent, after which neither David White nor Ms. Thompson took any action.

Taken together, the evidence reflects ambiguity regarding the June 2023 beneficiary change. Plaintiff characterizes the change as rejected based on Thompson’s contemporaneous understanding of the Ameritas system’s response, while Ameritas later characterized the same transaction as legally effective notwithstanding its “pending” status in the online system.

Plaintiff’s theory of elder abuse rests on the assertion that Defendant herself caused the beneficiary designation to be changed. Plaintiff alleges, on information and belief, that Defendant accessed David White’s Ameritas account or completed a beneficiary change form on his home computer. No declarant with personal knowledge attests to having observed Defendant perform any such acts, and Plaintiff identifies no evidence that Defendant possessed login credentials or accessed the Ameritas system. To the extent Plaintiff characterizes Thompson’s declaration as stating that Defendant possessed login credentials, that characterization is not supported by the declaration itself.

While undue influence may be proven through circumstantial evidence and reasonable inferences, those inferences must be grounded in evidence of the alleged influencer’s conduct. Here, the record does not contain facts from which a reasonable inference can be drawn that Defendant engaged in conduct amounting to elder abuse or fraud.

Plaintiff also relies on allegations concerning Defendant’s conduct after David White’s death, including alleged nonpayment of taxes, receipt of a real estate commission, and personal expenditures. The Court does not find this post-death conduct probative of whether Defendant engaged in wrongful conduct in connection with the June 2023 beneficiary designation.

### **Disposition**

Plaintiff has not demonstrated that it is more likely than not to prevail on the merits and has therefore failed to establish the probable validity required for issuance of a prejudgment writ of attachment. As such, the Application is denied.

**13. 9:00 AM CASE NUMBER: C25-01138**  
**CASE NAME: MERCURY INSURANCE COMPANY VS. SELAMAT KETAPI**  
**\*HEARING ON MOTION IN RE: TO QUASH SERVICE AND SET ASIDE DEFAULT**  
**FILED BY: KETAPI, MAHLA**  
**\*TENTATIVE RULING:\***

Parties to Appear.